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possibility that a change in controlling precedent, even standing alone, might give reason for 60(b)(6) relief”); *Ramirez v. United States*, 799 F. 3d 845, 850 (CA7 2015) (endorsing the Third Circuit’s approach).

Others, including the Fifth Circuit, appear to have announced a contrary, categorical rule: “A ‘change in decisional law after entry of judgment does not constitute extraordinary circumstances and is not alone grounds for relief from a final judgment.’” *Raby v. Davis*, 907 F. 3d 880, 884 (CA5 2018) (quoting *Adams v. Thaler*, 679 F. 3d 312, 319 (CA5 2012); alterations omitted); see also, *e. g.*, *Zagorski v. Mays*, 907 F. 3d 901, 905 (CA6 2018) (“[W]e have determined that changes in decisional law alone do not establish grounds for Rule 60(b)(6) relief”); *Moses v. Joyner*, 815 F. 3d 163, 168 (CA4 2016) (“We too have held that ‘a change in decisional law subsequent to a final judgment provides no basis for relief under Rule 60(b)(6)’” (quoting *Dowell v. State Farm Fire & Cas. Auto Ins. Co.*, 993 F. 2d 46, 48 (CA4 1993))).

The lower courts’ decisions in Crutsinger’s case did not pivot on a categorical rule. In other circumstances, however, such a rule may be dispositive, see *Adams*, 679 F. 3d, at 318–320, and may cause friction with *Gonzalez*. In an appropriate case, this issue could warrant the Court’s review.

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Miscellaneous Orders

No. 19A230. BARR, ATTORNEY GENERAL, ET AL. *v.* EAST BAY SANCTUARY COVENANT ET AL. D. C. N. D. Cal. Application for stay, presented to JUSTICE KAGAN, and by her referred to the Court, granted. The District Court’s July 24, 2019, order granting preliminary injunction and September 9, 2019, order restoring the nationwide scope of the injunction are stayed in full pending disposition of the Government’s appeal in the United States Court of Appeals for the Ninth Circuit and disposition of the Government’s petition for writ of certiorari, if such writ is sought. If a writ of certiorari is sought and the Court denies the petition, this order shall terminate automatically. If the Court grants the petition for writ of certiorari, this order shall terminate when the Court enters its judgment.

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SOTOMAYOR, J., dissenting

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

Once again the Executive Branch has issued a rule that seeks to upend longstanding practices regarding refugees who seek shelter from persecution. Although this Nation has long kept its doors open to refugees—and although the stakes for asylum seekers could not be higher—the Government implemented its rule without first providing the public notice and inviting the public input generally required by law. After several organizations representing immigrants sued to stop the rule from going into effect, a Federal District Court found that the organizations were likely to prevail and preliminarily enjoined the rule nationwide. A federal appeals court narrowed the injunction to run only circuit-wide, but denied the Government’s motion for a complete stay.

Now the Government asks this Court to intervene and to stay the preliminary decisions below. This is an extraordinary request. Unfortunately, the Court acquiesces. Because I do not believe the Government has met its weighty burden for such relief, I would deny the stay.

The Attorney General and Secretary of Homeland Security promulgated the rule at issue here on July 16, 2019. See 84 Fed. Reg. 33829. In effect, the rule forbids almost all Central Americans—even unaccompanied children—to apply for asylum in the United States if they enter or seek to enter through the southern border, unless they were first denied asylum in Mexico or another third country. *Id.*, at 33835, 33840; see also 385 F. Supp. 3d 922, 929–930 (ND Cal. 2019).

The District Court found that the rule was likely unlawful for at least three reasons. See *id.*, at 938–957. First, the court found it probable that the rule was inconsistent with the asylum statute, 94 Stat. 105, as amended, 8 U.S.C. § 1158. See § 1158(b)(2)(C) (requiring that any regulation like the rule be “consistent” with the statute). Section 1158 generally provides that *any* noncitizen “physically present in the United States or who arrives in the United States . . . may apply for asylum.” § 1158(a)(1). And unlike the rule, the District Court explained, the statute provides narrow, carefully calibrated exceptions to asylum eligibility. As relevant here, Congress restricted asylum based on the possibility that a person could safely resettle in a third country. See §§ 1158(a)(2)(A), (b)(2)(A)(vi). The rule, by

contrast, does not consider whether refugees were safe or resettled in Mexico—just whether they traveled through it. That blunt approach, according to the District Court, rewrote the statute. See 385 F. Supp. 3d, at 939–947, 959.

Second, the District Court found that the challengers would likely prevail because the Government skirted typical rulemaking procedures. *Id.*, at 947–951. The District Court noted “serious questions” about the rule’s validity because the Government effected a sea change in immigration law without first providing advance notice and opportunity for public comment. *Id.*, at 930; see also 5 U.S.C. § 553. The District Court found the Government’s purported justifications unpersuasive at the preliminary-injunction stage. 385 F. Supp. 3d, at 948–951 (discussing statutory exceptions to notice-and-comment procedures).

Last, the District Court found the explanation for the rule so poorly reasoned that the Government’s action was likely arbitrary and capricious. See *id.*, at 951–957; 5 U.S.C. § 706. On this score, the District Court addressed the Government’s principal justifications for the rule: that failing to seek asylum while fleeing through more than one country “raises questions about the validity and urgency” of the asylum seeker’s claim, 84 Fed. Reg. 33839; and that Mexico, the last port of entry before the United States, offers a feasible alternative for persons seeking protection from persecution, *id.*, at 33835, 33839–33840. The District Court examined the evidence in the administrative record and explained why it flatly refuted the Government’s assumptions. 385 F. Supp. 3d, at 951–957. A “mountain of evidence points one way,” the District Court observed, yet the Government “went the other—with no explanation.” *Id.*, at 955.

After the District Court issued the injunction, the Ninth Circuit declined the Government’s request for a complete stay, reasoning that the Government did not make the required “‘strong showing’” that it would likely succeed on the merits of each issue. 934 F. 3d 1026, 1028 (2019) (quoting *Hilton v. Braunskill*, 481 U.S. 770, 776 (1987)). Narrowing the injunction to the Circuit’s borders, the Ninth Circuit expedited the appeal and permitted the District Court to consider whether additional facts would warrant a broader injunction. 934 F. 3d, at 1029–1030.

The lower courts’ decisions warrant respect. A stay pending appeal is “extraordinary” relief. *Williams v. Zbaraz*, 442 U.S. 1309, 1311 (1979) (Stevens, J., in chambers); see also *Maryland v.*

King, 567 U.S. 1301, 1302 (2012) (ROBERTS, C. J., in chambers) (listing stay factors). Given the District Court’s thorough analysis, and the serious questions that court raised, I do not believe the Government has carried its “especially heavy” burden. *Packwood v. Senate Select Comm. on Ethics*, 510 U.S. 1319, 1320 (1994) (Rehnquist, C. J., in chambers). The rule here may be, as the District Court concluded, in significant tension with the asylum statute. It may also be arbitrary and capricious for failing to engage with the record evidence contradicting its conclusions. It is especially concerning, moreover, that the rule the Government promulgated topples decades of settled asylum practices and affects some of the most vulnerable people in the Western Hemisphere—without affording the public a chance to weigh in.

Setting aside the merits, the unusual history of this case also counsels against our intervention. This lawsuit has been proceeding on three tracks: In this Court, the parties have litigated the Government’s stay request. In the Ninth Circuit, the parties are briefing the Government’s appeal. And in the District Court, the parties recently participated in an evidentiary hearing to supplement the record. Indeed, just two days ago the District Court reinstated a nationwide injunction based on new facts. See *East Bay Sanctuary Covenant v. Barr*, No. 4:19-cv-4073 (ND Cal., Sept. 9, 2019), ECF Doc. 73. Notably, the Government moved to stay the newest order in both the District Court and the Ninth Circuit. (Neither court has resolved that request, though the Ninth Circuit granted an administrative stay to allow further deliberation.) This Court has not considered the new evidence, nor does it pause for the lower courts to resolve the Government’s pending motions. By granting a stay, the Court simultaneously lags behind and jumps ahead of the courts below. And in doing so, the Court sidesteps the ordinary judicial process to allow the Government to implement a rule that bypassed the ordinary rule-making process. I fear that the Court’s precipitous action today risks undermining the interbranch governmental processes that encourage deliberation, public participation, and transparency.

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In sum, granting a stay pending appeal should be an “extraordinary” act. *Williams*, 442 U.S., at 1311. Unfortunately, it appears the Government has treated this exceptional mechanism as a new normal. Historically, the Government has made this kind

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of request rarely; now it does so reflexively. See, *e. g.*, *Vladeck, The Solicitor General and the Shadow Docket*, 133 Harv. L. Rev. 123 (2019). Not long ago, the Court resisted the shortcut the Government now invites. See *Trump v. East Bay Sanctuary Covenant*, 586 U.S. 1062 (2018). I regret that my colleagues have not exercised the same restraint here. I respectfully dissent.

No. 17–834. *KANSAS v. GARCIA*; *KANSAS v. MORALES*; and *KANSAS v. OCHOA-LARA*. Sup. Ct. Kan. [Certiorari granted, 586 U.S. 1221.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 17–1618. *BOSTOCK v. CLAYTON COUNTY, GEORGIA*. C. A. 11th Cir.; and

No. 17–1623. *ALTITUDE EXPRESS, INC., ET AL. v. ZARDA, AS EXECUTOR OF THE ESTATE OF ZARDA, ET AL.* C. A. 2d Cir. [Certiorari granted, 587 U.S. 960.] Joint motion of petitioner in No. 17–1618 and respondents in No. 17–1623 for divided argument denied. Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18–107. *R. G. & G. R. HARRIS FUNERAL HOMES, INC. v. EQUAL EMPLOYMENT OPPORTUNITY COMMISSION ET AL.* C. A. 6th Cir. [Certiorari granted, 587 U.S. 960.] Motion of the Solicitor General for divided argument granted.

No. 18–217. *MATHENA, WARDEN v. MALVO*. C. A. 4th Cir. [Certiorari granted, 586 U.S. 1221.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18–1334. *FINANCIAL OVERSIGHT AND MANAGEMENT BOARD FOR PUERTO RICO v. AURELIUS INVESTMENT, LLC, ET AL.*;

No. 18–1475. *AURELIUS INVESTMENT, LLC, ET AL. v. COMMONWEALTH OF PUERTO RICO ET AL.*;

No. 18–1496. *OFFICIAL COMMITTEE OF UNSECURED CREDITORS OF ALL TITLE III DEBTORS OTHER THAN COFINA v. AURELIUS INVESTMENT, LLC, ET AL.*;

No. 18–1514. *UNITED STATES v. AURELIUS INVESTMENT, LLC, ET AL.*; and

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No. 18–1521. *UNIÓN DE TRABAJADORES DE LA INDUSTRIA ELÉCTRICA Y RIEGO, INC. v. FINANCIAL OVERSIGHT AND MANAGEMENT BOARD FOR PUERTO RICO ET AL.* C. A. 1st Cir. [Certiorari granted, 588 U. S. 901.] Upon consideration of the August 29, 2019, motions for divided argument, a total of 80 minutes is allotted for consolidated oral argument on both questions presented, and the time is divided as follows: 20 minutes to the Financial Oversight and Management Board, 20 minutes to the Solicitor General, 30 minutes to Aurelius Investment, LLC, et al., and 10 minutes to Unión de Trabajadores de la Industria Eléctrica y Riego, Inc.

No. 18–6135. *KAHLER v. KANSAS.* Sup. Ct. Kan. [Certiorari granted, 586 U. S. 1221.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

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Dismissal Under Rule 46

No. 18–1307. *TENNESSEE CLEAN WATER NETWORK ET AL. v. TENNESSEE VALLEY AUTHORITY.* C. A. 6th Cir. Certiorari dismissed under this Court’s Rule 46.2. Reported below: 905 F. 3d 436.

SEPTEMBER 25, 2019

Certiorari Denied

No. 18–9227 (19A109). *SPARKS v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION.* C. A. 5th Cir. Application for stay of execution of sentence of death, presented to JUSTICE ALITO, and by him referred to the Court, denied. Certiorari denied. Reported below: 756 Fed. Appx. 397.

Statement of JUSTICE SOTOMAYOR respecting the denial of certiorari.

The allegations presented in this petition are disturbing. On the day the jury began punishment deliberations in petitioner Robert Sparks’ capital murder trial, one of the bailiffs on duty in the courtroom wore a black tie embroidered with a white syringe—a tie that he admitted he wore to express his support for the death penalty.

That an officer of the court conducted himself in such a manner is deeply troubling. Undoubtedly, such “distinctive, identifiable

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attire may affect a juror's judgment." *Estelle v. Williams*, 425 U. S. 501, 504–505 (1976). The state habeas court, however, conducted an evidentiary hearing but did not find sufficient evidence to conclude that the jury saw the tie. I therefore do not disagree with the denial of certiorari. I nevertheless hope that presiding judges aware of this kind of behavior would see fit to intervene in future cases by completely removing the offending item or court officer from the jury's presence. Only this will ensure the "very dignity and decorum of judicial proceedings" they are entrusted to uphold. *Illinois v. Allen*, 397 U. S. 337, 344 (1970). The stakes—life in this case, liberty in many others—are too high to allow anything less.

SEPTEMBER 30, 2019

Dismissal Under Rule 46

No. 19–5514. IN RE ROSA. Petition for writ of habeas corpus dismissed under this Court's Rule 46.

OCTOBER 4, 2019

Certiorari Granted

No. 19–67. UNITED STATES *v.* SINENENG-SMITH. C. A. 9th Cir. Certiorari granted. Reported below: 910 F. 3d 461.

No. 18–1323. JUNE MEDICAL SERVICES L. L. C. ET AL. *v.* GEE, SECRETARY, LOUISIANA DEPARTMENT OF HEALTH AND HOSPITALS; and

No. 18–1460. GEE, SECRETARY, LOUISIANA DEPARTMENT OF HEALTH AND HOSPITALS *v.* JUNE MEDICAL SERVICES L. L. C. ET AL. C. A. 5th Cir. Certiorari granted, cases consolidated, and a total of one hour is allotted for oral argument. Reported below: 905 F. 3d 787.

No. 18–1584. UNITED STATES FOREST SERVICE ET AL. *v.* COWPASTURE RIVER PRESERVATION ASSN. ET AL.; and

No. 18–1587. ATLANTIC COAST PIPELINE, LLC *v.* COWPASTURE RIVER PRESERVATION ASSN. ET AL. C. A. 4th Cir. Certiorari granted, cases consolidated, and a total of one hour is allotted for oral argument. Reported below: 911 F. 3d 150.